

## 26VECV03276 26VECV03276

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-14

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Case Number: 26VECV03276 Hearing Date: August 14, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

RACQUEL WOLBERT,

an individual,

Plaintiff,

vs.

RALPHS GROCERY COMPANY, an Ohio

corporation; THE KROGER CO., an Ohio

corporation; SUNRISE FLOOR SYSTEMS,

LLC, an Alabama Limited Liability Company;

DOE 1 (MANAGER); and DOES

2-50,

inclusive,

Defendants.

CASE NO: 26VECV03276

ORDER

RE:

MOTION

TO BE RELIEVED AS COUNSEL

Dept. W

8:30 a.m.

August 14, 2026

ORDER: The Court GRANTS Taylor Schwartz's Motion  
to be Relieved as Counsel.

#### Background

This is a premises liability case.

Plaintiff Racquel Wolbert alleges that on June 8, 2024, she slipped and fell on an unknown substance on the floor at a grocery store operated by Defendant Ralphs Grocery Company. Plaintiff alleges that Defendants failed to maintain the premises in a safe manner.

On June 4, 2026,  
Plaintiff brought suit against Defendants alleging a single claim of premises liability.

Now, Plaintiff's  
attorney Taylor Schwartz moves to be relieved as counsel.

#### Discussion

Counsel Taylor Schwartz moves to be relieved as Plaintiff's counsel.

The requirements for a Motion to be Relieved as Counsel are outlined in CRC 3.1362. Moving counsel must: (1) submit form MC-051 - notice of the motion to the client, (2) submit form MC-052 - a declaration explaining why they could not acquire client's consent to withdraw, (3) submit form MC-053 – a copy of the proposed order, and (4) serve these documents and notice of the motion to

both the client and all other parties in the case. (Cal. Rules of Court, rule 3.1362(a)-(e).) Additionally, relief cannot be granted if it is reasonably foreseeable that the client would suffer prejudice as a result of the withdrawal. (Mossanen v. Monfared (2000) 77 Cal.App.4th 1402, 1409.)

First, counsel has submitted Form MC-051 and has served Plaintiff with notice of this motion. (Motion to be Relieved, MC-051.) Second, counsel has submitted Form MC-052, stating that: "Despite counsel's repeated efforts to advise Plaintiff regarding the facts, applicable law, and realistic expectations concerning this matter, Plaintiff has persisted in taking positions that have resulted in a complete breakdown of trust and confidence essential to the attorney-client relationship. As a result, counsel is no longer able to effectively represent Plaintiff or fulfill his professional obligations in this matter. Therefore, it is respectfully submitted that good cause exists for these moving attorneys to be relieved as counsel of record." (Declaration in Support, ¶ 2.) Third, counsel submitted a copy of the proposed order via Form MC-053. (Proposed Order, MC-053.) Fourth, counsel served these documents on all parties in this case. (MC-051, Proof of Service, 7/16/26.) Thus, counsel has met all the procedural requirements under CRC 3.1362.

Finally, the Court must determine whether it is reasonably foreseeable that the client will suffer prejudice if the Court grants this motion. There are no motions scheduled in this case. The most imminent hearing is a case management conference scheduled for October 2, 2026. Thus, it is not reasonably foreseeable that Plaintiff could be prejudiced by counsel withdrawing.

For these reasons, the Court GRANTS Taylor Schwartz's Motion to be Relieved as Counsel.

Conclusion

The Court GRANTS Taylor Schwartz's Motion to be Relieved as Counsel.

IT  
IS SO ORDERED.

Taylor Schwartz TO  
GIVE NOTICE to all parties and to the client.

August 14, 2026